

Amendment No. 1 to SB2171

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 2171

House Bill No. 1898*

by deleting § 68-107-102(2) in SECTION 1 and substituting:

(2) "Artificial intelligence model" or "AI" means a machine-based system that can, for a given set of human-defined objectives, make predictions, recommendations, or decisions influencing real or virtual environments and that is capable of using machine- and human-based inputs to perceive real and virtual environments, abstract such perceptions into models through analysis in an automated manner, and use model inference to formulate options for information or action;

AND FURTHER AMEND by deleting § 68-107-102(7) in SECTION 1 and substituting:

(7) "Covered chatbot":

(A) Means a service that:

- (i) Allows an ordinary person to have conversations where humanlike responses are generated by a foundation model;
- (ii) Is foreseeably likely to be accessed by minors; and
- (iii) Has at least one million (1,000,000) monthly active users; and

(B) Does not include:

- (i) Software that operates solely for the purpose of customer service, business operations, productivity, and analysis related to source information, internal research, or technical assistance; or
- (ii) Software that is incorporated into a video game, film, television program, other audiovisual work, or a theme park or location-based experience, and cannot discuss topics related to mental health, self-harm,

or sexually explicit content, or maintain a dialogue on other topics
unrelated to the video game, film, television program, audiovisual work, or
theme park or location-based experience;